

## CHAPTER 38.

*Local Government (Boundary Commission) Act, 1945.*

## ARRANGEMENT OF SECTIONS.

## Section.

1. Establishment of Local Government Boundary Commission.
2. Power of Commission to alter areas.
3. Exercise of powers of Commission.
4. Supplementary provisions as to orders.
5. Annual report of Commission.
6. Saving for royal prerogative.
7. Saving for municipal corporations.
8. Short title, citation and repeals.

## SCHEDULES :

First Schedule.—Constitution and Proceedings of Local Government Boundary Commission.

Second Schedule.—Repeal of certain Provisions of Local Government Act, 1933.

An Act to provide for the establishment of a Local Government Boundary Commission ; to make further provision for the alteration of local government areas in England and Wales exclusive of London ; and for purposes connected with the matters aforesaid.

[15th June 1945.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) There shall be established a Local Government Boundary Commission (in this Act referred to as “the Commission”) which shall be charged with the duty of reviewing the circumstances of the areas into which England and Wales (exclusive of the administrative county of London) are divided for the purposes of local government, and exercising, where it appears to the Commission expedient so to do, the powers of altering those areas conferred by the following provisions of this Act.

Establishment  
of Local  
Government  
Boundary  
Commission.

(2) The provisions of the First Schedule to this Act shall have effect as to the constitution and proceedings of the Commission.

(3) The Minister of Health (in this Act referred to as “the Minister”) may, after consultation with such associations of local authorities as appear to him to be concerned, make regulations prescribing general principles by which the Commission are to be guided in the exercise of their functions under this Act, but such regulations shall be of no effect until approved by resolution of each House of Parliament.

Power of  
Commission to  
alter areas.

2.—(1) The Commission shall have power—

- (a) to alter or define the boundaries of a county, county borough or county district ;
- (b) to unite a county with another county, or a county borough with another county borough, or to unite a non-county borough with another non-county borough, or an urban or rural district with another district, whether urban or rural, or to include an urban or rural district in a non-county borough or any county district in a county borough ;
- (c) to divide a county into, between or among two or more counties or an urban or rural district into two or more districts, whether urban or rural, or between or among two or more areas, whether county boroughs or county districts ;
- (d) to constitute a borough (either by itself or together with the whole or any part of another county district) a county borough ;
- (e) to direct that a county borough shall become a non-county borough and specify the county in which it is to be included ;
- (f) to constitute a new urban or rural district, or to convert a rural district into an urban district or an urban district into a rural district ;
- (g) so far as appears to the Commission to be requisite in connection with any exercise of their powers under the foregoing paragraphs, to alter the boundary between a parish and another parish, to unite a parish with another parish, to divide a parish into, between or among two or more parishes, or to constitute a new parish :

Provided that no part of the administrative county of Middlesex shall be constituted a county borough.

(2) For the avoidance of doubt it is hereby declared that nothing in this Act affects the power of His Majesty to grant a commission of the peace and a court of quarter sessions to any borough, whether constituted in pursuance of this section or otherwise.

(3) References in this Act to the alteration of an area include references to the exercise in relation to the area of any of the powers conferred by subsection (1) of this section.

Exercise of  
powers of  
Commission.

3.—(1) Where the Minister directs the Commission to take into consideration the question whether any alterations ought to be made under the last foregoing section in respect of any areas of local government, or where the Commission without any such direction consider it desirable so to do, then, subject to the

provisions of this section, they shall take that question into consideration.

(2) If application in that behalf is made to the Commission with respect to—

(a) the area of a county or county borough, by the council thereof; or

(b) the area of a county district, by the council of the county in which the district is situated,

the Commission shall take into consideration the question whether or not alterations under the last foregoing section ought to be made with respect to the area.

(3) The Commission in considering whether it is desirable to take into consideration the question whether any alterations ought to be made under the last foregoing section in respect of any area of local government, and the Minister or the council of a county in considering whether to give a direction or to make an application under subsection (1) or subsection (2) of this section, shall have regard to any representations made by the council of a county district included in the area in question.

(4) If application in that behalf is made to the Commission by the council of any borough with a population of one hundred thousand or upwards, as estimated by the Registrar-General, the Commission shall take into consideration the question whether or not the power conferred by the last foregoing section of constituting the borough a county borough ought to be exercised.

(5) The Commission shall comply with any direction of the Minister that for the purposes of this section they are to give priority to any area or areas, or class of areas, specified in the direction.

(6) Where the Commission determine that any alteration of areas ought to be made, they shall by order direct that the alteration shall have effect.

(7) Where the Commission determine that no such alteration ought to be made, they shall embody their determination in an order.

(8) Where an order under subsection (6) or (7) of this section relating to any area has come into operation, then, notwithstanding anything in the foregoing provisions of this section, the Commission shall not, within ten years after the order came into operation, take into consideration the question of altering that area unless they are satisfied that by reason of a substantial change in the distribution of population or other exceptional circumstances it is desirable so to do.

(9) An order under subsection (6) or (7) of this section relating to a county or a county borough (including an order directing

that a county borough be constituted or that a county borough shall become a non-county borough or embodying a determination that such a direction ought not to be given) shall be provisional only and shall be of no effect until confirmed by Parliament.

(10) The procedure in connection with the exercise by the Commission of their functions under this section shall be such as may be prescribed by regulations made by the Minister and approved by resolution of each House of Parliament, and such regulations—

- (a) shall make provision for opportunities for objection by persons likely to be affected by any order proposed to be made under this section, and for securing that, where objections are made by the council of any county, county borough or county district likely to be so affected or in such other circumstances as may be specified in the regulations and are not withdrawn, a local inquiry shall be held before an order is made;
- (b) may empower the holding of local inquiries generally for the purposes of this section, and make provision as to the conduct of local inquiries held in pursuance of the regulations and in particular for limiting the calling of evidence at such inquiries and the manner in which persons may be represented thereat,

and subsections (2) to (5) of section two hundred and ninety of the Local Government Act, 1933 (which relate to the giving of evidence on, and defraying the costs of, local inquiries) shall apply to local inquiries held as aforesaid as they apply to the local inquiries mentioned in subsection (1) of the said section two hundred and ninety.

(11) As soon as may be after the Commission have made such an order as is mentioned in subsection (9) of this section, they shall prepare and transmit to the Minister a statement describing shortly the proceedings leading to the making of the order, summarising any representations made for or against the order, and setting out the considerations which led the Commission to make the order, and the Minister shall lay the statement before Parliament.

(12) In section one hundred and thirty-nine of the Local Government Act, 1933 (under which the power to promote a Bill for the purpose of constituting a borough a county borough is limited to boroughs with a population of seventy-five thousand or upwards), for the words "is seventy-five thousand" there shall be substituted the words "as estimated by the Registrar-General is one hundred thousand."

Supple-  
mentary  
provisions as  
to orders.

4. The supplementary provisions set out in sections one hundred and forty-eight to one hundred and fifty-four and section two hundred and seventy-five of the Local Government

Act, 1933, shall apply in relation to orders under this Act altering an area of local government as if this Act were included in Part VI of that Act (which provides for the alteration of such areas), and as if references in those provisions to the making of an order by the Minister included references to the making of an order by the Commission.

5. As soon as may be after the end of the year nineteen hundred and forty-six and each subsequent year the Commission shall prepare and transmit to the Minister a report of their proceedings for the year in question, and the Minister shall lay the report before Parliament. Annual report of Commission.

6. The powers conferred by this Act shall be in addition to, and not in derogation from, the powers exercisable by His Majesty by virtue of his royal prerogative. Saving for royal prerogative.

7. Save as is in this Act provided nothing in this Act shall prejudicially alter or affect the rights, privileges and immunities of any municipal corporation or the operation of any municipal charter. Saving for municipal corporations.

8.—(1) This Act may be cited as the Local Government (Boundary Commission) Act, 1945, and the Local Government Act, 1933, and this Act may be cited together as the Local Government Acts, 1933 and 1945. Short title, citation and repeals.

(2) The provisions of the Local Government Act, 1933, specified in the first column of the Second Schedule to this Act, which relate to the matters specified in the second column of that Schedule, are hereby repealed to the extent specified in the third column of that Schedule.

## SCHEDULES.

### FIRST SCHEDULE.

Section 1.

#### CONSTITUTION AND PROCEEDINGS OF LOCAL GOVERNMENT BOUNDARY COMMISSION.

##### *Constitution.*

1. The Commission shall be a body corporate by the name of the Local Government Boundary Commission, and shall consist of a chairman, a deputy chairman and three other members.

2.—(1) The members of the Commission shall be appointed by His Majesty, and shall hold and vacate office in accordance with the terms of their respective appointments.

(2) A person who has ceased to be a member of the Commission shall be eligible for re-appointment.

3. A person shall be disqualified from being appointed to or being a member of the Commission so long as he is a member of the Commons House of Parliament.

4. There shall be paid to a member of the Commission such salary or fees and allowances as may be determined by the Treasury at the time of his appointment.

5. The Commission shall have a common seal, which shall be authenticated by the signature of a member of the Commission or of any other person authorised in that behalf by the Commission.

*Capacity and proceedings.*

6. The Commission shall have power to act notwithstanding a vacancy among the members thereof, and at any meeting of the Commission three shall be the quorum.

7. All acts done at a meeting of the Commission shall, notwithstanding that it is afterwards discovered that there was a defect in the appointment of a person purporting to be a member thereof, be as valid as if the defect had not existed.

8. Subject to the foregoing provisions of this Schedule, and to any regulations made under this Act or directions given by the Minister under section three of this Act, the procedure of the Commission shall be such as the Commission may from time to time determine.

*Officers and servants, and remuneration and expenses.*

9. The Commission may appoint a secretary and such number of officers and servants as may be determined by the Commission after consultation with the Minister and with the consent of the Treasury, and there shall be paid to the secretary, officers and servants of the Commission such salaries, fees and allowances as may be so determined.

10. The expenses of the Commission, and the salaries, fees and allowances of the members of the Commission and their secretary, officers and servants, shall be defrayed out of moneys provided by Parliament.

*Proof of documents.*

II.—(1) Every document purporting to be an instrument made or issued by the Commission and to be duly sealed with the seal of the Commission or to be signed by the secretary, or any person authorised to act in that behalf, shall be received in evidence, and shall, unless the contrary is proved, be deemed to be an instrument made or issued by the Commission.

(2) Prima facie evidence of any such instrument may in any legal proceedings be given by the production of a document purporting to be certified to be a true copy of the instrument by or on behalf of the secretary.

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## SECOND SCHEDULE.

Section 8.

## . REPEAL OF CERTAIN PROVISIONS OF LOCAL GOVERNMENT ACT, 1933.

| Provision repealed. | Subject matter of provision.                              | Extent of repeal.                                                                                                                                                                                                                                                                    |
|---------------------|-----------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| s. 140 ...          | Alteration of boundaries of counties, boroughs, etc.      | The whole section.                                                                                                                                                                                                                                                                   |
| s. 141 ...          | Alteration of urban or rural districts and parishes, etc. | In subsection (1).<br>In paragraphs (a) and (b) respectively the words "of an urban or rural district or."<br>In paragraphs (c) and (d) respectively, the words from the beginning to the third "or."<br>Paragraph (e).<br>In paragraph (f), the words "urban or rural district or." |
| s. 143 ...          | Adjustment of boundaries of counties and county boroughs. | The whole section.                                                                                                                                                                                                                                                                   |
| s. 146 ...          | Review of county districts by county councils.            | The whole section.                                                                                                                                                                                                                                                                   |

## CHAPTER 39.

An Act to authorise the use of open space during a limited period for temporary housing accommodation, and for purposes connected therewith. [15th June 1945.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this section, the Minister of Health (in this Act referred to as "the Minister") may by order authorise a local authority for the purposes of Part V of the Housing Act, 1936, to use for the purposes of the Housing (Temporary Accommodation) Act, 1944, land vested in them, or at their disposal, at the passing of this Act which is, or forms part of, an open space:

Provided that this subsection shall have effect during the period of two years beginning with the passing of this Act and no longer.

Power to authorise use of open space during a limited period for temporary housing accommodation.

26 Geo. 5. &  
1 Edw. 8.  
c. 51.